

Gopal Pathak vs The State Of Jharkhand Through The Chief ... on 27 November, 2024

Author: Deepak Roshan

Bench: Deepak Roshan

IN THE HIGH COURT OF JHARKHAND AT RANCHI
W.P.(C) No. 6148 of 2024

Gopal Pathak, aged about 69 years, S/o Late Ram Janam Pathak, R/o Imli Kothi, P.O. Hazaribagh, P.S. Sadar & District-HazaribaghPetitioner Versus

1. The State of Jharkhand through the Chief Secretary, officiating at Project Bhawan, P.O., P.S. Dhurwa & District-Ranchi
2. The Principal Secretary, Department of Food, Public Distribution & Consumer Affairs, Government of Jharkhand officiating at Project Bhawan, P.O., P.S. Dhurwa & District-Ranchi
3. Dr. Nitesh Priya, S/o Late Dr. Vinod Priya, R/o Hill View Hospital & Research Centre, Hill View Road, P.O., P.S. Bariatu & District-Ranchi
4. The Hill View Hospital & Research Centre through Dr. Nitesh Priya, having its office at Hill View Road, P.O., P.S. Bariatu & District-Ranchi
5. The Oriental Insurance Company Limited through its Managing Director, having its Head Office at A-25/27, Asaf Ali Road, P.O. Ajmeri Gate Extension, District-New Delhi & PIN-110002
6. The Branch Manager, Oriental Insurance Company Limited, having his office at 4E/14, Azad Bhawan, Jhandelwala Ext, Jhandelwala, P.O. P.S. Jhandelwala, District-New Delhi & PIN-110055.

.....Respondents

CORAM : HON'BLE MR. JUSTICE DEEPAK ROSHAN

--

For the Petitioner : Mr. Chanchal Jain, Advocate For the Respondents : Mr. Shubham Gautam, A.C to AAG-V

--

02/27.11.2024 Heard learned counsel for the parties.

2. The instant writ application has been preferred by the petitioner praying therein for quashing and setting aside the order dated 19.09.2024 passed by the learned District Consumer Disputes Redressal Commission, Ranchi in Consumer Complaint No. 58/2018; whereby the petition for obtaining expert opinion filed by the petitioner, has been dismissed.

3. Learned counsel for the petitioner submits that he had filed an application before the learned District Consumer Disputes Redressal Commission, Ranchi for seeking an expert opinion with regard to alleged medical negligence against the opposite parties-doctors; however, the said petition has been dismissed and thereafter, the petitioner had preferred a revision application before the Appellate Forum i.e., Jharkhand State Consumer Forum being Revision Application No. 07 of 2024.

He further submits that since the Corum of the Appellate Forum, Ranchi is not complete and practically it is not functioning; as such, in the interest of justice a direction may be issued to the District Consumer Disputes Redressal Commission, Ranchi not to proceed with the case any further in view of the fact that the Revision petition is lying pending before the State Forum.

He lastly submits that if the case will be disposed of before adjudication of the Application No. 07 of 2024 filed before the State Forum, the entire case will become infructuous.

4. Learned counsel for the State fairly submits that at present the Jharkhand State Consumer Forum is not functioning; as such, necessary order may be passed.

5. Having regard to the peculiar facts and circumstances of the case, since a revision application has been preferred before the Jharkhand State Consumer Forum, Ranchi and the same has not been taken up for hearing due to the peculiar reason stated hereinabove; accordingly, interest of justice would be sufficed by directing the District Consumer Disputes Redressal Commission, Ranchi to stay the further proceeding in Consumer Complaint No. 58 of 2018.

6. Accordingly, the learned District Consumer Disputes Redressal Commission, Ranchi is directed not to proceed in the Consumer Complaint No. 58 of 2018 till the Revision Application No. 07 of 2024 filed by this petitioner is adjudicated by the Jharkhand State Consumer Forum.

7. With the aforesaid observations, the instant writ application stands disposed of.

(Deepak Roshan, J.) jk